

OFFICE OF THE SECRETARY

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May 21, 2019

The Honorable Charles Horan
Judge of the Superior Court
County of Los Angeles
400 Civic Center Plaza
Pomona, CA 91766-3201

Re: Gene McCallum
CDCR No: F70712
Case No: KA076295-01
Date of Sentence: April 17, 2007

Dear Honorable Charles Horan:

The purpose of this letter is to provide the court with the authority to resentence inmate Gene McCallum, pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1). PC Section 1170, subdivision (d) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

Inmate McCallum is commended for remaining disciplinary free since being received to the Department of Corrections and Rehabilitation (CDCR) on May 4, 2007. Inmate McCallum is currently assigned to Inmate Day Labor. Inmate McCallum is also taking courses offered by Patten University and is commended for his academic accomplishments. Inmate McCallum has participated in self-help programs and was acknowledged for successfully completing the requirements of the Options Recovery Services, Addiction Recovery Counseling (ARC) drug and alcohol treatment program at San Quentin State Prison.

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Having reviewed the enclosed documentation it appears that inmate McCallum's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,



RALPH M. DIAZ
Secretary

Enclosures:
Abstract of Judgment

Minute Order
Court Information-Charging Documents
Cumulative Case Summary

cc: Los Angeles County District Attorney's Office
Los Angeles County Public Defender's Office